

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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GEORGE GITTENS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER ERIC FLORES, Shield No. 1698, LIEUTENANT DAVIDS, SERGEANT BORIS DURETS, Shield No. 024012, and POLICE OFFICERS JOHN DOES #1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 22, 2015

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Eric Flores, Shield No. 1698, 88th Precinct, 298 Classon Avenue,
Brooklyn N.Y., 11205
Lieutenant Davids, 88th Precinct, 298 Classon Avenue, Brooklyn N.Y. 11205
Sergeant Boris Durets, 88th Precinct, 88th Precinct, 298 Classon Avenue, Brooklyn, N.Y.
11205

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff GEORGE GITTENS, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 22, 2014, approximately 5:45 PM., plaintiff George Gittens was unlawfully searched, falsely arrested and falsely imprisoned in the vicinity of Fairway Variety Store located at 971 Fulton Street, Brooklyn, New York. Thereafter, plaintiff was maliciously prosecuted by the defendant police officers. Further, the defendant police officers denied plaintiff the right to a fair trial. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, maliciously prosecuted, denied plaintiff the right to a fair trial, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff George Gittens is a resident of the state of New York.

3. Police Officer Eric Flores, Shield No. 1698, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer Eric Flores, Shield No. 1698, is and was at all times relevant herein, assigned to the 88th Precinct.

5. Police Officer Eric Flores, Shield No. 1698 is being sued in his individual and official capacity.

6. Lieutenant Davids, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Lieutenant Davids, is and was at all times relevant herein, assigned to the 88th Precinct.

8. Lieutenant Davids is being sued in his individual and official capacity.

9. Sergeant Boris Durets, Shield No. 024012 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Sergeant Boris Durets, Shield No. 024012, is and was at all times relevant herein, assigned to the 52nd Precinct.

11. Sergeant Boris Durets, Shield No. 024012, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of

a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

18. Defendant City of New York held a hearing pursuant to General Municipal Law 50-H on April 7, 2015.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On February 21, 2014 at approximately 5:45 PM plaintiff was a lawful customer at Fairway Variety Store located at 971 Fulton Street, Brooklyn, New York, whereat the store clerk, Mohammed Jbari told plaintiff that he "hates black people" and also asked plaintiff if he was gay, and used an aggressive tone of voice as if it was extremely bad to be gay.

22. Plaintiff lawfully purchased items and also lawfully exited the store.

23. The following day, on February 22, 2014 plaintiff visited Imam Awad Elsayed Elmatbagi, the leader of Mohammed Jbari's mosque and told him what Mohammed Jbari said the day before.

24. The Imam asked plaintiff to accompany him to the Fairway variety Store to speak with Mohammed Jbari.

25. The Imam told Mohammed Jbari that what he said to plaintiff was wrong and that he should be respectful of all customers that come into the store.

26. In response, Mohammed Jbari stuck his middle finger at plaintiff, reached over the counter and repeatedly hit plaintiff on the forehead while shouting and calling plaintiff a "fucking faggot."

27. Plaintiff exited the store with the Imam and called 911.

28. While plaintiff was on the phone with the 911 operator, Mohammed Jbari exited the store, physically attacked plaintiff on the sidewalk, punched, kicked, stomped, pulled plaintiff's hair, and dragged plaintiff into the street with traffic driving in both directions.

29. The 911 operator was able to hear everything that transpired and he/she communicated to the police officers responding to the scene that plaintiff was being physically attacked by the Mr. Jbari.

30. There were approximately 20 eyewitnesses to the assault and battery of plaintiff by Mohammed Jbari.

31. Plaintiff's front tooth was knocked out by Mohammed Jbari, he suffered multiple bumps and bruises on his scalp, severe headaches, severe neck pain, back pain, pain to both knees, left elbow pain, and left shoulder pain.

32. Mohammed Jbari then yelled to the crowd that he would "kick all of y'all asses."

33. The Defendant New York City police officers arrived shortly thereafter.

34. A female witness and several other witnesses told the police exactly what transpired, as described above, and that plaintiff was attacked and was a crime victim.

35. Furthermore, plaintiff advised the police about what transpired and the police officers viewed a surveillance video of the incident from the store, as well as an NYPD surveillance video which clearly showed plaintiff being attacked by Mohammed Jbari, and also showed that plaintiff committed no crime.

36. Nevertheless, even though the officers had evidence that demonstrated that plaintiff did not commit a crime, was a crime victim and the officers lacked probable cause to arrest plaintiff for committing a crime, the NYPD officers proceeded to falsely arrest plaintiff and handcuff him.

37. At approximately 5:45 p.m. on February 22, 2014 plaintiff was transported by the defendant police officers to the 88th Precinct against his will.

38. Plaintiff's injuries were treated by EMS at the Precinct.

39. Plaintiff was unlawfully detained until 11:00 PM and then issued a desk appearance ticket to appear in court for crimes he did not commit and for which the officers knew he did not commit.

40. After the defendant police officers falsely arrested plaintiff on February 22, 2014, they charged plaintiff with crimes that they had no basis to accuse him of committing.

41. The defendant police officers maliciously initiated a prosecution against plaintiff without probable cause when they forwarded false, misleading, and/or incomplete information and/or evidence to the Kings County District Attorney's Office to explain their basis for arresting and prosecuting plaintiff.

42. Notably, at no time did the police recover any drugs, guns, or contraband of any kind from plaintiff's person.

43. Additionally, the defendant NYPD officers signed and executed a criminal court complaint that contained false, misleading and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

44. Thereafter, the prosecution was maliciously continued by said police officers without probable cause until it was dismissed on or about December 17, 2014 when the criminal prosecution against plaintiff terminated in his favor.

45. The search, false arrest, false imprisonment, malicious prosecution, and denial of a fair trial to plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth and Fifth Amendments of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Failure to Intervene

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

54. Defendants failed to intervene to prevent the unlawful conduct described herein.

55. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, George Gittens. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

62. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Malicious Prosecution

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

66. Defendants commenced and continued a criminal proceeding against plaintiff.

67. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

68. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

69. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein..

73. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

74. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

75. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

76. In withholding/creating false evidence against plaintiff George Gittens, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

77. As a result of the foregoing, plaintiff George Gittens, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

80. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAAYER FOR RELIEF

WHEREFORE, plaintiff George Gittens demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 22, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 22, 2015

/s/
STUART E. JACOBS